Lanco Amarkantak Power Ltd vs Haryana Electricity Regulatory ... on 14 March, 2013

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

I.A. No. 88 of 2013 in
DFR No. 466 of 2013

Dated : 14th March, 2013

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

In the matter of:

Lanco Amarkantak Power Ltd. ....Appellant(s)
Versus
Haryana Electricity
Regulatory Commission & Ors. ....Respondent (s)

Counsel for the Appellant (s): Mr. Akhil Sibbal
Counsel for the Respondent(s): Mr. M.G. Ramachandran
Mr. Apoorve Karol
Mr. Chirag Kher for R.2
Mr. Abhishek Mitra
Ms. Puja Priyadarshini for R.3
Ms. Suparna Srivastava for R.4

ORDER

(Appl. for condonation of delay) This is an application to condone the delay of 85 days as against the impugned Order dated 17.10.2012.

In this matter, challenging our earlier Judgment dated 04.11.2011, an Appeal had been filed before the Hon'ble Supreme Court. In the meantime, in pursuance of the Judgment rendered by this Tribunal as directed by the Hon'ble Supreme Court, the final Order has been passed by the State Commission on 17.10.2012.

As per the directions of the Hon'ble Supreme Court to approach this Tribunal to file an Appeal against the Order dated 17.10.2012, this Appeal has been filed and during the said process, it is stated that the delay of 85 days has been caused.

The Hon'ble Supreme Court while passing the directions observed that the application for the delay could be considered in view of the pendency of the Appeal before the Supreme Court. It is represented that all the Respondents have been served with the copies of the Petition. The Respondent Nos. 2, 3 & 4, who are contesting Respondents are present here today.

In view of the directions of the Hon'ble Supreme Court, we deem it appropriate to condone the delay of 85 days in filing the Appeal as sufficient cause has been shown. Accordingly, the delay is condoned. The Registry is directed to number the Appeal and post for Admission on 18.03.2013.

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 ( V.J. Talwar)                (Justice M. Karpaga Vinayagam)
Technical Member                        Chairperson
ts/vs
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